

NAPCS Unionization Research — State — Charter School Overview

New Mexico — PELRB

NAPCS Unionization Research • Report date: September 21, 2026 • Census date: June 2026 • Template v8.1

Section 1: State Overview

State	New Mexico
Labor Board	PELRB — New Mexico Public Employee Labor Relations Board. Representation records at ten charter schools, 2008–2026.
Governing Law	Public Employee Bargaining Act (PEBA), NMSA 1978 §10-7E ; Charter Schools Act, NMSA 1978 §22-8B .
NLRB Record	No New Mexico charter school cases found (case search , September 21, 2026; verified with a control query).
Right-to-Work	Not a right-to-work state. Union security agreements are permitted and local right-to-work ordinances are preempted (2019 House Bill 85 , signed March 27, 2019, effective June 14, 2019; codified at NMSA 1978 §50-4-35).
For-Profit Operator Status	A governing body may not contract with a for-profit entity for management of the school (§22-8B-4 ; "management" defined at §22-8B-2).
Card-Check Available	Yes — certification on majority authorization cards (§10-7E-14(C)). Five charter units certified by card count, 2022–2026.
Research Window	May 2026 (initial) • May–June 2026 (corrections) • September 2026 (jurisdiction update)

Section 2: Charter School Landscape (June 2026 census)

Census figures are fixed at a single date and are unchanged in this report. The June 2026 census reflects school-level research conducted between May and June 2026; changes identified since each school's research date appear in Section 2A, with the date the evidence was verified.

Category	Schools	% of Total	Notes
Charter schools with documented union representation	3	3.1%	Monte del Sol Charter School , J. Paul Taylor Academy , Turquoise Trail Charter School
Total charter schools in New Mexico	98	100%	Charter School Registry v50 (NCES/ELSI 2024-25)

Charter School Enrollment

Total Charter Enrollment	32,856 students — 10.7% of state K–12 enrollment (307,110 students)
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Students in CMO/EMO-Affiliated Schools	6,518 students — 19.8% of total charter enrollment
Students in Organized Charter Schools	1,192 students — 3.6% of charter enrollment
Data Sources	NCES ELSI 2024-25; Charter School Registry v133

Section 2A: Changes Since the June 2026 Census

Our census counts organized schools as of a single date. Organizing is ongoing. This section lists changes confirmed by labor board records since the June 2026 census. They are not included in the counts in Section 2 and will be incorporated into the next census release.

School	Case	Evidence	Evidence verified	Status
Explore Academy (Albuquerque)	PELRB 334-25	Card-count certification approved February 17, 2026	Sep 21, 2026	Organized <i>Full research pending</i>
Six Directions Indigenous School (Gallup)	PELRB 302-26	Card-count certification approved June 2, 2026	Sep 21, 2026	Organized <i>Full research pending</i>
South Valley Academy (Albuquerque)	PELRB 307-26	Card-count certification approved June 2, 2026; represented by Teamsters Local 492	Sep 21, 2026	Organized <i>Full research pending</i>
The MASTERS Program (Santa Fe)	PELRB 310-26	Card-count certification approved August 4, 2026	Sep 21, 2026	Organized <i>Full research pending</i>
Tierra Encantada Charter School (Santa Fe)	PELRB 314-21	Card check February 7, 2022; certification confirmed in Board minutes of April 5, 2022	Sep 21, 2026	Organized <i>Full research pending</i>
Alma d'Arte Charter High School (Las Cruces)	PELRB 313-08	NEA representation case, 2008, 14 employees	Sep 21, 2026	Organized (2008 record) <i>Current status pending research</i>
Vista Grande High School (Taos)	PELRB 302-10	AFT-NM voluntary recognition, 2010, 11 employees	Sep 21, 2026	Organized (2010 record) <i>Current status pending research</i>

Effect on the count at the next census release. Five schools are confirmed organized and would take the count from 3 to 8 of 98 New Mexico charter schools. Two further schools are under research. Enrollment in organized schools will be recalculated at that time. Each school is researched under the full protocol before incorporation.

Section 3: Charter Management Organizations & Education Management Organizations

CMOs are nonprofit networks; EMOs are for-profit management companies. Sourced from Charter School Registry v133.

Network	Type	Campuses	Enrollment	Organized in State
New Mexico Connections Academy	Contracts with Connections Academy of New Mexico, LLC for online education services	1	1,487	—
Explore Academy	CMO	3	2,442	Albuquerque campus — see Section 2A
Mission Achievement and Success Charter School	CMO	2	2,233	—
The New America School	CMO	2	356	—
TOTAL		8	6,518	—

Section 4: Legal Framework & Charter School Overview

1: Legal and Jurisdictional Framework

In New Mexico, charter school unions are certified by PELRB. All ten charter school bargaining units on record, from 2008 through 2026, were certified or recognized by PELRB. None has been certified by the National Labor Relations Board. PELRB certifies either by election or on a majority showing of authorization cards, and both routes have been used here ([§10-7E-14](#); [PELRB rules](#)).

The federal route remains open. Employees at any charter school may petition the NLRB, and no state law can prevent that filing. The NLRB decides jurisdiction school by school under the **Hawkins County test** — whether the school was created directly by the state as a department of government, or is administered by people responsible to public officials or the electorate — under the "political subdivision" exclusion in Section 2(2) of the National Labor Relations Act, 29 U.S.C. §152(2) ([NLRB v. Natural Gas Utility District of Hawkins County, 402 U.S. 600 \(1971\)](#)). The Board has declined to exclude charter schools as a class ([KIPP Academy Charter School, 02-RD-191760 \(2020\)](#)). As of September 21, 2026, no charter school petition has been

filed with the NLRB in New Mexico ([case search](#)), so the test has never been applied to a New Mexico charter school.

2: Charter School Structure

New Mexico has 98 charter schools enrolling 32,856 students, 10.7 percent of state K–12 enrollment. Most are authorized by the Public Education Commission and operate as their own Local Education Agencies; a smaller number are authorized by school districts, including South Valley Academy in Albuquerque. Four networks operate eight campuses enrolling 6,518 students. The remaining schools operate independently.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

The [Santa Fe New Mexican](#) reported Turquoise Trail's first union vote in 2020, which failed 25 to 15. The [Albuquerque Journal](#) and [KOB](#) covered South Valley Academy's certification with Teamsters Local 492 in July 2026; KOB described the school as the first New Mexico charter school to unionize, which the PELRB record does not support. The [Santa Fe New Mexican](#) reported on The MASTERS Program union in August 2026.

Stakeholder Communications

Teamsters Local 492 and the [International Brotherhood of Teamsters](#) issued public announcements of the South Valley Academy certification in July and August 2026. AFT New Mexico's state president commented publicly on The MASTERS Program union in August 2026. The affiliations behind the local units at Explore Academy and Six Directions Indigenous School are not yet confirmed.

Legislative Context

Under PEBA, a labor organization is certified when it shows majority support through authorization cards or wins an election; an election is valid only if at least 40 percent of eligible employees vote, and a majority of votes cast decides it ([§10-7E-14](#)). Decertification requires a written request from 30 percent of the employees in the unit ([§10-7E-16](#)). Charter school employees are covered because state law defines a charter school as a [public school](#) and applies the School Personnel Act to its employees ([§22-8B-10](#)). New Mexico is not a right-to-work state: union security agreements have been permitted statewide, and local right-to-work ordinances preempted, since [House Bill 85](#) took effect on June 14, 2019.

Section 6: Contract & CBA Access Registry

School / Network	Union	CBA Status & Term	Contract Access
Monte del Sol Charter School	NEA-New Mexico	ACTIVE — 2025-2026; union since 2010-11	Posted on the school website
J. Paul Taylor Academy (PELRB name: "John Paul Taylor Academy")	NEA (PELRB certified)	ACTIVE — ratified 2017-18; salary schedules through 2025-26	Posted on the school HR page

Turquoise Trail Charter School	NEA-New Mexico (local chapter not confirmed)	NO CBA RATIFIED — bargaining stalled September 2022	N/A
Tierra Encantada Charter School	TECS-NEA	Contract status not established	Research pending
Explore Academy (Albuquerque), Six Directions, South Valley Academy, The MASTERS Program	See Section 2A	First contracts in progress or not yet established	Research pending

Sources

PELRB records	Bargaining units (Feb 2026) • Labor-management representatives (Mar 2026) • Representation petitions 2004–2012 • Board records 2026 2022 2021 • Legal Digest . Retrieved September 21, 2026. Meeting records before 2021 are not published online.
NLRB case records	South Valley Academy • Masters Program • charter Albuquerque • charter Santa Fe . Searched September 21, 2026; a control query confirmed the search was working.
Statutes and cases	PEBA • §10-7E-14 Elections • PELRB rules • §22-8B-4 • §22-8B-2 • 2019 HB 85 (union security agreements) • Hawkins County • KIPP Academy .
Press	Santa Fe New Mexican (2020) • Albuquerque Journal (Jul 2026) • KOB (Jul 2026) • Teamsters (Aug 2026) • Santa Fe New Mexican (Aug 2026)
Enrollment	NCES ELSI 2024-25; Charter School Registry v50 / v133